



Bristol Corporation (General Powers) Act 1971

CHAPTER ix

ARRANGEMENT OF SECTIONS

PART I

PRELIMINARY

Section

1. Short title.
2. Division of Act into Parts.
3. Interpretation.

PART II

SUPERANNUATION

4. Interpretation for Part II.
5. Commencement of Part II.
6. Benefits in certain cases of premature retirement.
7. Transfers of employment.
8. Extension of foregoing sections.

PART III

FINANCE

Section

9. Power to borrow.
10. Power to raise money by issue of bills.
11. Power to raise money abroad.
12. Investment of superannuation fund.
13. Amendment of section 33 of Act of 1960.
14. Powers of Part III of Act to be cumulative.
15. Expenses of investment of superannuation fund.
16. Recovery of rates from certain owners.

PART IV

HACKNEY CARRIAGES, ETC.

17. Interpretation for Part IV.
18. Applications for drivers' licences.
19. Suspension and revocation of proprietors' licences.
20. Suspension and revocation of drivers' licences.
21. Fitness of hackney carriages, etc.
22. Age limit for drivers.
23. Fitness of drivers.
24. Amendment of section 45 of Act of 1960.

PART V

MISCELLANEOUS AND GENERAL

25. As to use of computer equipment of Corporation.
26. Amendment of section 42 of Bristol Corporation Act, 1950.
27. Removal of vehicles left on dock estate.
28. Appeals.
29. Restriction on right to prosecute.
30. Protection of members and officers of Corporation from personal liability.
31. Application of general provisions of Act of 1936.
32. Costs of Act.

SCHEDULES:

- Schedule 1—Section 32 (Investment of superannuation fund) of the Act of 1960 as amended.
- Schedule 2—Sections of Act of 1936 applied.

ELIZABETH II



1971 CHAPTER ix

An Act to confer further powers on the lord mayor, aldermen and burgesses of the city of Bristol, to make further provision with regard to the local government, welfare, improvement and finances of the city; and for other purposes. [17th February 1971]

WHEREAS the city and county of Bristol (hereinafter referred to as “the city”) is a county borough under the government of the lord mayor, aldermen and burgesses of the city (hereinafter referred to as “the Corporation”):

And whereas it is expedient that further and better provision should be made with reference to the local government, welfare and improvement of the city and that the powers of the Corporation in regard thereto should be enlarged and extended as in this Act provided:

And whereas it is expedient that the provisions with regard to the finances of the city which are contained in this Act should be made and that the Corporation should be empowered to borrow for the various purposes of this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

PART I PRELIMINARY

- Short title. 1. This Act may be cited as the Bristol Corporation (General Powers) Act 1971.
- Division of Act into Parts. 2. This Act is divided into Parts as follows:—
 Part I.—Preliminary.
 Part II.—Superannuation.
 Part III.—Finance.
 Part IV.—Hackney carriages, etc.
 Part V.—Miscellaneous and general.
- Interpretation. 3.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Act of 1936 have the same respective meanings, unless there be something in the subject or context repugnant to such construction.
- (2) In this Act, unless the subject or context otherwise requires—
- 1936 c. 49. “the Act of 1933” means the Local Government Act, 1933;
 1960 c. 1. “the Act of 1936” means the Public Health Act, 1936;
 “the Act of 1960” means the Bristol Corporation Act, 1960;
 “the city” means the city and county of Bristol;
 “contravention” includes a failure to comply and
 “contravene” shall be construed accordingly;
 “the Corporation” means the lord mayor, aldermen and
 burgesses of the city acting by the council;
 “the council” means the council of the city;
 “daily fine” means a fine for each day on which an offence
 is continued after conviction thereof;
 “the dock estate” means the docks, piers, wharves, quays,
 berths, roads, railways, bridges, sheds and other works
 and conveniences, and the lands, buildings and property
 of every description and of whatever nature which are
 for the time being vested in or occupied by the Corpora-
 tion for the purposes of the Avonmouth Docks, the
 City Docks and the Portishead Docks of the Corporation;

“enactment” includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force within the city;

PART I
—cont.

“magistrates’ court” has the same meaning as in the Magistrates’ Courts Act, 1952;

1952 c. 55.

“the town clerk” means the town clerk of the city.

(3) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II

SUPERANNUATION

4.—(1) In this Part of this Act, except as otherwise expressly provided or unless the context otherwise requires, words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings, and—

Interpretation
for Part II.

“the Act of 1937” means the Local Government Superannuation Act, 1937;

1937 c. 68.

“contributor” means a contributor to the fund as respects whom the Corporation are the employing authority;

“transfer value” has, in relation to a contributor, the meaning assigned to it by the Regulations of 1954;

“the fund” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937;

“the principal Acts” means the Local Government Superannuation Acts, 1937 to 1953;

“the Regulations of 1954” means the Local Government Superannuation (Benefits) Regulations, 1954;

“return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to, or in respect of, him by way of interest on the amount of the contributions returned to him;

“superannuation benefit” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

PART II
—cont.

(2) Without prejudice to the provisions of section 7 (Transfers of employment) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of this Part of this Act subject to the extensions, modifications and applications of the said Acts and regulations contained in this Part of this Act.

Commence-
ment of
Part II.

5. This Part of this Act shall come into force on 1st April, 1971.

Benefits in
certain cases
of premature
retirement.

6.—(1) Where, after the coming into force of this Part of this Act, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated by the Corporation in the interests of efficiency before he has attained the age of sixty-five years, the contributor shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor if, not later than one month after ceasing to hold his employment, he notifies the Corporation in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of this Part of this Act, a contributor who has attained the age of fifty-five years and completed twenty-five years' service but has not attained pensionable age terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection, he may, by notice given to the Corporation in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection, and any rights to which he is entitled thereunder, shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Corporation otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person who has become entitled to a superannuation benefit by virtue of subsection (2) of this section dies before any payment on account of such benefit has been made to

him, the like benefits shall, as from the date of his death, be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

PART II
—cont.

(4) For the avoidance of doubt it is hereby declared that, where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of “service” in section 40 (1) of the Act of 1937, whether or not any payment has been made to him on account thereof.

(5) For the purposes of section 16 of the Local Government Superannuation Act, 1953, and of any rules made thereunder, 1953 c. 25. a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him, and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) In this section “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having, otherwise than under this section, attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954, as the case may be.

7.—(1) The Corporation may, in accordance with the provisions of a scheme made by them for the purposes of this section—

(a) as respects any contributor who ceases or has ceased to hold employment with the Corporation in order to enter an employment (in this paragraph referred to as “the new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

PART II
—cont.

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment with the Corporation:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment with the Corporation from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder, as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State, and the Secretary of State may approve any such scheme, either with or without modifications, after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force may make any amendments or modifications of that superannuation scheme which may be desirable to facilitate the operation of any scheme made by the Corporation under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subsection (1) (a) (i) of this section or to such payment by way of a transfer value or otherwise as is referred to in subsection (1) (b) of this section.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act, 1948, or by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

8.—(1) The Corporation may, at the request in writing of any other employing authority, being the employing authority of any person who participates in the benefits of the fund, determine that, subject to the provisions of this section and to such terms and conditions and from such date as may be agreed between the Corporation and the employing authority, all or any of the provisions of the last two foregoing sections of this Act, and of any scheme made under section 7 (Transfers of employment) of this Act, shall extend and apply in relation to that person.

PART II
—cont.

Extension of
foregoing
sections.

(2) An employing authority may make any such request to, and enter into and carry into effect any such agreement with, the Corporation as is mentioned in subsection (1) of this section notwithstanding anything contained in any enactment; and, where under any enactment or any agreement made under an enactment provision is made for expenditure to be reimbursed by an employing authority to the fund, such provision shall extend and apply in a like manner to any expenditure incurred under any of the said foregoing sections or the said scheme in pursuance of the provisions of this section.

(3) In this section any reference to a person shall be deemed to include a reference to any class or description of persons.

PART III

FINANCE

9.—(1) The Corporation may borrow—

Power to
borrow.

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for the payment of the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within ten years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

1946 c. 58.

PART III
—cont.Power to
raise money
by issue of
bills.

10.—(1) In addition to the modes of borrowing prescribed by the Act of 1933, the Corporation may raise money—

- (a) for any purpose for which the Corporation are authorised to borrow;
- (b) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Corporation may properly be applied;

by means of bills (to be called “ Bristol Corporation bills ” and in this section referred to collectively as “ bills ” and separately as “ a bill ”), subject to and in accordance with the following provisions:—

- (i) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (ii) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (iii) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Corporation may determine:
- (iv) Bills shall be issued under the authority of a resolution passed by the council, and shall bear the signature of the treasurer of the city or of some other person authorised by the council:
- (v) The Corporation may make regulations providing for—
 - (A) the preparation and form and the mode of issue, payment and cancellation of bills;
 - (B) the issue of a new bill in lieu of one defaced, lost or destroyed;
 - (C) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills;
 - (D) the giving of a proper discharge on the payment of a bill; and
 - (E) the amendment or revocation of any regulations previously made or deemed to have been made under this paragraph:
- (vi) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

(vii) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

(A) the sum of three million five hundred thousand pounds; or

(B) one-fifth of the amount of the estimated gross rate income of the city during the then current financial year;

whichever is the greater:

(viii) Subject to the provisions of the last preceding paragraph the Corporation may renew a bill at maturity:

(ix) The Corporation may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Corporation to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

(2) In this section—

“ financial year ” means a period of twelve months ending on the 31st March;

“ gross rate income ” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act, 1967;

1967 c. 9.

“ revenues ” has the same meaning as in section 218 of the Act of 1933;

“ signature ” includes a facsimile of a signature by whatever process reproduced.

(3) Section 35 (Power to raise money by bills) of the Bristol Corporation Act, 1903, is hereby repealed.

1903 c. ccxi.

11.—(1) Any method by which the Corporation are empowered by any enactment to raise any money which they are authorised to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency. Power to raise money abroad.

(2) (a) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury and subject to such conditions as the Treasury may impose.

PART III
—cont.

(b) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted where necessary to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction).

1947 c. 14.

(3) It shall not be lawful to exercise the powers conferred by this section except in compliance with the Exchange Control Act, 1947.

Investment
of super-
annuation
fund.

12.—(1) Section 32 (Investment of superannuation fund) of the Act of 1960 shall have effect as if—

(a) the following paragraph was substituted for paragraph (a) of subsection (1):—

“ (a) in or upon any investments for the time being authorised by law for investment of trust funds; or ”;

(b) the following paragraphs were substituted for paragraphs (e), (f) and (g) of subsection (1):—

“ (e) in or upon any of the stocks, funds or securities of the government of any foreign country or state; or

(f) in or upon the bonds, debentures, debenture stock, convertible debenture stock, obligations or securities of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world; or

(g) in or upon any guaranteed, preference or ordinary stock or shares or any preferred or deferred or other stock or shares of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world, being stock or shares which at the time of making the investment are quoted on any recognised stock exchange or similar institution; or

(h) in the purchase, whether alone or jointly or in common with any other person, of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or

- (i) in the advance of money upon the security of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands whether the security be taken by a separate and distinct mortgage or security made exclusively to the Corporation, or by a mortgage or security made jointly to the Corporation and any other person; or
 - (j) upon the security of freehold or leasehold ground rents, land charges or rentcharges; or
 - (k) in any units, or other shares of the investments subject to the trusts, of a unit trust scheme with powers of investment which do not in substance extend the scope of powers of investment conferred by the foregoing provisions of this section; or
 - (l) in accordance with a scheme submitted to the Treasury by any association of local authorities or by the Greater London Council and approved by the Treasury as enabling investments to be made collectively without in substance extending the scope of powers of investment conferred by this section ”;
- (c) in the proviso to subsection (1) for the words “ paragraph (e) ” wherever they occur there were substituted the words “ paragraph (g) ”, for the words “ following qualifications ” there were substituted the words “ qualification that ”, paragraph (i) were omitted and in paragraph (ii) for the word “ one-half ” there were substituted the word “ three-quarters ”;
- (d) after subsection (2) there were inserted the following subsection:—

“ (3) In subsection (1) of this section the expression ‘ recognised stock exchange ’ in its application to the United Kingdom means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act, 1958, or the Belfast Stock Exchange ”.

1958 c. 45.

(2) Accordingly section 32 (Investment of superannuation fund) of the Act of 1960 shall have effect as set out in Schedule 1 to this Act.

13. Section 33 (Investment of other funds of Corporation) of the Act of 1960 shall have effect as if for the words “ paragraphs (a) to (g) ” there were substituted the words “ paragraphs (a) to (l) ” and as if for the words “ subsection (2) ” there were substituted the words “ subsections (2) and (3) ”.

Amendment
of section 33
of Act of
1960.

PART III
—cont.Powers of
Part III
of Act to be
cumulative.

14. All powers and duties conferred or imposed by this Part of this Act or by section 32 (Investment of superannuation fund) or section 33 (Investment of other funds of Corporation) of the Act of 1960 shall be deemed to be in addition to and not in derogation of any other powers and duties conferred or imposed by any enactment, law or custom, and, subject to any express provision of this Act or of the said sections 32 and 33, all such other powers and duties may be exercised and shall be performed in the same manner and as if this Act had not been passed and the said sections 32 and 33 had not been enacted.

Expenses of
investment
of super-
annuation
fund.

15. All costs, charges and expenses incurred by the Corporation in investing moneys forming part of the superannuation fund maintained by them, or otherwise in relation thereto, shall be paid by the Corporation out of that fund.

Recovery of
rates from
certain
owners.

16.—(1) (a) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on the hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments.

(b) The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

(2) For the purposes of this section “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

1967 c. 9.

(3) This section shall not apply to any hereditament to which subsection (1) of section 55 of the General Rate Act, 1967, applies by virtue of a resolution of the council.

PART IV

HACKNEY CARRIAGES, ETC.

Interpretation
for Part IV.

17. In this Part of this Act, unless the subject or context otherwise requires—

1847 c. 89.

“the Act of 1847” means the Town Police Clauses Act, 1847;

- “hackney carriage” has the same meaning as in the Act of 1847 but does not include a public service vehicle as defined in section 117 of the Road Traffic Act, 1960; PART IV
—cont.
1960 c. 16.
- “the prescribed distance” has the same meaning as in section 171 of the Public Health Act, 1875; 1875 c. 55.
- “private hire vehicle” means a vehicle within the prescribed distance to which the provisions of section 45 (Provisions as to motor vehicles let for hire) of the Act of 1960 apply.

18.—(1) Before any licence to drive a hackney carriage or a private hire vehicle is granted by the Corporation, a requisition for the same, in such form as the Corporation from time to time provide for that purpose, shall be made and signed by the applicant for the licence and in every such requisition all such particulars as the Corporation require shall be truly set forth. Applications for drivers' licences.

(2) Any person who in connection with an application for such a licence makes a declaration to the Corporation or to an officer of the Corporation which to his knowledge is false or in any material respect misleading shall be liable to a fine not exceeding fifty pounds.

19.—(1) Notwithstanding anything in the Act of 1847, the Corporation may suspend or revoke the licence of a proprietor of a hackney carriage or a private hire vehicle on the ground of the unfitness of the hackney carriage or vehicle or for any other reasonable cause, and where the Corporation suspend or revoke such a licence under this subsection they shall give to any such proprietor notice of the grounds on which the licence has been suspended or revoked. Suspension and revocation of proprietors' licences.

(2) Any such proprietor aggrieved by a decision of the Corporation under subsection (1) of this section may appeal to a court of quarter sessions.

20.—(1) Notwithstanding anything in the Act of 1847, the Corporation may suspend or revoke the licence of a driver of a hackney carriage or a private hire vehicle on the ground that he has since the granting of the licence been convicted of an offence involving dishonesty, indecency or violence or for any other reasonable cause, and where the Corporation suspend or revoke such a licence under this subsection they shall give to any such driver notice of the grounds on which the licence has been suspended or revoked. Suspension and revocation of drivers' licences.

PART IV
—cont.

(2) Any such driver aggrieved by a decision of the Corporation under subsection (1) of this section may appeal to a court of quarter sessions.

Fitness of
hackney
carriages,
etc.

21.—(1) Any person acting on behalf of the Corporation and authorised in writing by the town clerk shall have power at all reasonable times to inspect any hackney carriage in the city and any private hire vehicle in the city which is for the time being licensed by the Corporation under the Act of 1847 for the purpose of ascertaining its fitness, and if he is not satisfied of the fitness of the hackney carriage or vehicle or of the accuracy of its taximeter he may by notice in writing require the proprietor of the hackney carriage or vehicle to make it or its taximeter available for further inspection at such reasonable time and place as may be specified in the notice and suspend the licence of the proprietor until such time as he is so satisfied or the expiration of a period of two months whichever shall first occur.

(2) If the proprietor of a hackney carriage in the city or of any private hire vehicle in the city fails without reasonable excuse to comply with any notice given by the Corporation requiring him to make it or its taximeter available for inspection at a reasonable time and place specified in the notice, he shall be liable to a fine not exceeding five pounds.

Age limit
for drivers.

22. Notwithstanding anything in the Act of 1847, the Corporation shall not grant a licence to act as driver of a hackney carriage or a private hire vehicle to any person under the age of twenty-one years.

Fitness of
drivers.

23. The Corporation may require any applicant for a licence to drive a hackney carriage or a private hire vehicle—

- (a) to produce a certificate signed by a registered medical practitioner to the effect that he is physically fit to be the driver of a hackney carriage or such a vehicle; and
- (b) whether or not such a certificate has been produced, to submit to examination by a registered medical practitioner selected by the Corporation as to his physical fitness to be the driver of a hackney carriage or such a vehicle.

Amendment
of section 45
of Act of
1960.

24. Section 45 (Provisions as to motor vehicles let for hire) of the Act of 1960 shall have effect as if for the words “standing or plying for hire notwithstanding that it stands or plies for hire on private premises only and whether or not it is on view to the public” there were substituted the words “notwithstanding that it is not a hackney carriage, which is offered or let for hire with the services of a driver and to such drivers”.

PART V

MISCELLANEOUS AND GENERAL

25.—(1) The Corporation may provide services and facilities for the processing of data by computer or by any other equipment of the Corporation which the Corporation may possess for any person and the Corporation may make such charges as may be agreed for the provision of those services and facilities.

As to use
of computer
equipment
of
Corporation.

(2) Information obtained by any employee of the Corporation in the course of the provision of such services or facilities shall not without the consent of the person from whom it was obtained be disclosed by that employee except for the purpose of performing his duties in relation to those services and facilities or in such cases as may be required by law.

26. Subsection (1) of section 42 (Expenses of executing demolition order to be a charge on the property) of the Bristol Corporation Act, 1950, shall have effect as if for the words “ in respect of which judgment has been obtained ” there were substituted the words “ which the Corporation have power to recover ”.

Amendment
of section 42
of Bristol
Corporation
Act, 1950.
1950 c. lx.

27.—(1) If a vehicle is left without the permission of the Corporation—

Removal of
vehicles left on
dock estate.

- (a) in a parking place provided by the Corporation on the dock estate for a longer period than twenty-four hours;
- (b) in any place within the dock estate where it is likely to obstruct or interfere with the use of the dock estate; or
- (c) in any part of the dock estate where the parking of vehicles is prohibited and notice of such prohibition has been erected by the Corporation;

the Corporation may remove the vehicle, or cause it to be removed.

(2) Any notice erected under paragraph (c) of subsection (1) of this section shall be conspicuously posted in or in proximity to the place to which it relates.

(3) Where the Corporation in exercise of the powers of this section remove a vehicle, or cause it to be removed, the expenses of and incidental to the removal shall be recoverable by the Corporation from the owner of the vehicle as a debt in any court of competent jurisdiction.

(4) If the Corporation in exercise of the powers of this section remove a vehicle to a place not readily visible from the place whence it is so removed, they shall, if and as soon as it is reasonably practicable to do so, send to the owner of the vehicle at his last known address, his registered address or the address

PART V
-cont.

where the vehicle is ordinarily kept, notice that they have exercised the powers of this section and of the place to which the vehicle has been removed.

(5) A notice stating the general effect of subsection (1) of this section shall be displayed in a prominent position at each entrance to any parking place provided by the Corporation on the dock estate and at each entrance where a road accessible to vehicles enters any part of the dock estate and shall be endorsed on any tickets issued to persons leaving vehicles in any such parking place or elsewhere at the dock estate.

(6) (a) In this section—

“owner” means the person for the time being registered as the owner of the vehicle for the purposes of the Road Vehicles (Registration and Licensing) Regulations, 1964, or any other regulations having the like effect for the time being in force and in relation to a vehicle which is the subject of a hiring agreement or hire purchase agreement includes the person entitled to possession of the vehicle under the agreement;

“vehicle” includes a trailer.

(b) In relation to a trailer which has been removed by the Corporation subsection (4) of this section shall have effect as if the words “his registered address” were omitted and paragraph (a) of this subsection shall have effect as if for the reference to the person for the time being registered as the owner of the vehicle there was substituted a reference to the owner of the trailer.

Appeals.

28. Section 300 of the Act of 1936 shall apply to appeals to a magistrates' court under this Act and sections 301 and 302 of that Act shall apply accordingly.

Restriction
on right to
prosecute.

29. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation.

Protection
of members
and officers of
Corporation
from
personal
liability.
1875 c. 55.

30. Section 265 of the Public Health Act, 1875, shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act, and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Application
of general
provisions
of Act of
1936.

31. The sections of the Act of 1936 mentioned in Schedule 2 to this Act shall have effect as if references therein to that Act included a reference to this Act.

32. All costs, charges and expenses preliminary to and of and incidental to the preparation of and the application for and the obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund of the city or out of moneys to be borrowed under this Act for that purpose.

PART V

—cont.

Costs of Act.

SCHEDULES

SCHEDULE 1

Section 12. SECTION 32 (INVESTMENT OF SUPERANNUATION FUND) OF THE ACT OF 1960 AS AMENDED

1937 c. 68. (1) In its application to the Corporation subsection (3) of section 21 of the Local Government Superannuation Act, 1937, shall have effect as if for the obligation to invest any moneys forming part of but not for the time being required to meet payments out of the superannuation fund maintained by the Corporation under that Act in securities in which trustees are authorised to invest there were substituted an obligation to invest such moneys as follows (namely):—

- (a) in or upon any investments for the time being authorised by law for investment of trust funds; or
- (b) in or upon any of the stocks, funds or securities of any dominion, commonwealth, union, dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part of any such dominion, commonwealth, union, dependency or colony; or
- (c) in or upon any of the stocks, bonds, mortgages or securities of any municipality or county or district council or local or public authority or board in the United Kingdom or in any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or of the legislature concerned to issue the same; or
- (d) in or upon any stocks, shares, bonds, mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the United Kingdom Government or by the government of any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid; or
- (e) in or upon any of the stocks, funds or securities of the government of any foreign country or state; or
- (f) in or upon the bonds, debentures, debenture stock, convertible debenture stock, obligations or securities of any company incorporated under any general or special Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world; or
- (g) in or upon any guaranteed, preference or ordinary stock or shares or any preferred or deferred or other stock or shares of any company incorporated under any general or special

Act of the United Kingdom Parliament or under any royal charter or registered or incorporated in any part of the world, being stock or shares which at the time of making the investment are quoted on any recognised stock exchange or similar institution; or

- (h) in the purchase, whether alone or jointly or in common with any other person, of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands; or
- (i) in the advance of money upon the security of immovable property of any tenure or kind in the United Kingdom, the Isle of Man or the Channel Islands whether the security be taken by a separate and distinct mortgage or security made exclusively to the Corporation, or by a mortgage or security made jointly to the Corporation and any other person; or
- (j) upon the security of freehold or leasehold ground rents, land charges or rentcharges; or
- (k) in any units, or other shares of the investments subject to the trusts, of a unit trust scheme with powers of investment which do not in substance extend the scope of powers of investment conferred by the foregoing provisions of this section; or
- (l) in accordance with a scheme submitted to the Treasury by any association of local authorities or by the Greater London Council and approved by the Treasury as enabling investments to be made collectively without in substance extending the scope of powers of investment conferred by this section;

with power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that the investment of such moneys as aforesaid in any investment of the nature specified in paragraph (g) of this subsection shall be subject to the qualification that no investment shall be made in any such investment as aforesaid at any time when the value of all the investments made under the said paragraph (g) which form part of the superannuation fund equals or exceeds three-quarters of the total value of the assets of that fund.

(2) For the purposes of the last foregoing subsection the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(3) In subsection (1) of this section the expression “recognised stock exchange” in its application to the United Kingdom means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act, 1958, 1958 c. 45. or the Belfast Stock Exchange.

Section 31.

SCHEDULE 2

SECTIONS OF ACT OF 1936 APPLIED

Section	Marginal note
271	Interpretation of “ provide ”.
283	Notices to be in writing; forms of notices, &c.
286	Proof of resolutions, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

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